

TEWKESBURY BOROUGH COUNCIL
TOWN AND COUNTRY PLANNING ACT 1990
SECTION 78 APPEAL

Planning Appeal by: Mr James Edwards

Location: 124 Cheltenham Road Bishops Cleeve Cheltenham GL52 8LZ

Proposed Development: Erection of a detached single storey 3-bedroom self-build dwelling and construction of a detached single storey car port with access driveway and vehicular parking.

Council Reference: 25/00855/FUL

Inspectorate Reference: Appeal 6004999

WRITTEN STATEMENT OF THE LOCAL PLANNING AUTHORITY

16th March 2026

1.0 Introduction

1.1 This Statement has been prepared on behalf of Tewkesbury Borough Council ("the Council"). It relates to a planning appeal lodged on behalf of Mr James Edwards ("the appellant") pursuant to Section 78 of the Town and Country Planning Act 1990 in respect of 124 Cheltenham Road Bishops Cleeve Cheltenham GL52 8LZ ("the appeal site").

1.2 The appeal was lodged against the refusal of a full planning application, local planning authority reference 25/00855/FUL for the ("appeal proposal"):

'Erection of a detached single storey 3-bedroom self-build dwelling and construction of a detached single storey car port with access driveway and vehicular parking'

1.3 The appeal is to be determined by the written representations procedure.

1.4 To avoid unnecessary repetition the Inspector is minded to refer to the officer's delegated report reference: 25/00855/FUL. This will outline information on the appeal site and location, relevant planning history and the details of the proposal.

2.0 Relevant Development Plan Policy and Government Advice

For a full list of the relevant policies the Inspector is also minded to refer to the officer's delegated report.

3.0 Council's Case

The Council have thoroughly read the appellant's statement of case and it is considered that the points raised by the appellant have been fully addressed in the delegated report. Therefore, to avoid repetition the Inspector is minded to refer to the Council's delegated report dated 14th January 2026, attached to planning application reference: 25/00855/FUL, for the Council's detailed assessment of the proposal.

However, it must be noted that when measuring bedroom three on the proposed floor plans document (reference P005 Rev B) at 1:100, bedroom 3 is approx. 1.1m wide and measures approx. 4m² in area. This is below the nationally described space standards for a single bedroom which should be 2.15m wide and have a floor area of 7.5m².

4.0 Conditions

4.1 Without prejudice to its case, the Council have considered some reasonable conditions should this appeal succeed.

1. The works hereby permitted shall be begun before the expiration of three years from the date of this consent.

Reason: Required to be imposed by Section 91 of the Town and Country Planning Act 1990 as amended by Section 51 of the Planning and Compulsory Purchase Act 2004.

2. The development hereby permitted shall be carried out in accordance with the following plan references:

P005 REV B received 8th December 2025

E001, P003 P006 and P007 received 22nd October 2025.

except where these may be modified by any other conditions attached to this permission.

Reason: To ensure that the development is carried out in accordance with the approved plans.

3. No work above floor plate level shall be carried out until samples of the wall materials proposed to be used have been submitted to and approved in writing by the Local Planning Authority. The development shall be carried out in accordance with the approved details.

Reason: To ensure a high-quality finish to the development in the interest of the visual amenities of the area.

4. Prior to first occupation of the dwelling hereby permitted the boundary fences shall be installed in accordance with details that have first been approved in writing by the Local Planning Authority. The details shall include a plan indicating the positions, design, materials and type of boundary treatment to be erected.

Reason: To ensure adequate provision for privacy and in the interests of visual amenity.

5. No work shall start on the construction of the building hereby approved until details of floor slab levels of the new building relative to the existing dwelling at the site have been submitted to and agreed in writing by the Local Planning Authority. Thereafter the new building shall be constructed in accordance with the approved slab levels.

Reason: To ensure neighbouring amenity is not impacted and to ensure that there are no adverse impacts on the character and appearance of the area.

6. All works shall be carried out in full accordance with the recommendations contained in the Preliminary Ecological Appraisal (Arbor Vitae, May 2025) already submitted with the planning application and agreed in principle with the Local Planning Authority prior to determination.

Reason: To protect and enhance the site for biodiversity in accordance with paragraphs 180, 185 and 186 of the National Planning Policy Framework (Chapter 15), Policy NAT1 (Biodiversity, Geodiversity and Important Natural Features) of the Tewkesbury Borough Plan, Policy SD9 of the Joint Core Strategy Gloucester, Cheltenham and Tewkesbury 2011 – 2031 and in order for the Council to comply with Section 40 of the Natural Environment and Rural Communities Act 2006.

7. Notwithstanding the submitted details, before above ground works commence a scheme for biodiversity enhancement, such as the incorporation of permanent bat roosting feature(s), hedgehog homes and nesting opportunities for birds, shall be submitted to and agreed in writing with the Local Planning Authority. The approved details shall be implemented prior to the occupation of any of the dwelling houses hereby permitted, and thereafter retained and maintained for the lifetime of the development. The scheme shall include, but not limited to, the following details:-

- i. Description, design or specification of the type of feature(s) or measure(s) to be undertaken;
- ii. Materials and construction to ensure long lifespan of the feature/measure;
- iii. A drawing(s) showing the location and where appropriate the elevation of the features or measures to be installed or undertaken; and
- iv. When the features or measures will be installed within the construction, occupation, or phase of the development.

Reason: To provide net gains for biodiversity in accordance with Section 40 of the NERC Act 2006, NPPF Chapter 15, the 25-year Environment plan, Policy NAT1 (Biodiversity, Geodiversity and Important Natural Features) of the Tewkesbury Borough Plan, Policy SD9 of the Joint Core Strategy Gloucester, Cheltenham and

Tewkesbury 2011 – 2031. The National Planning Policy is clear that in pursuing sustainable development a core principle for planning is achieving net gains for biodiversity.

8. Prior to the installation of external lighting for the development hereby approved, a lighting design strategy shall be submitted to and approved by the Local Planning Authority. The details shall clearly demonstrate that lighting will not cause excessive light pollution or disturb or prevent bat species using key corridors, forage habitat features or accessing roost sites. The strategy will:
 - a. Identify the areas/features on site that are particularly sensitive for nocturnal species;
 - b. Show how and where external lighting will be installed (including the type of lighting), so that it can be clearly demonstrated that areas to be lit will not disturb or prevent nocturnal species using their habitats or wildlife corridors.
 - c. show the position and luminance levels of proposed external lighting and how this responds to the landscape setting of the area.
 - d. Methods to control lighting control (e.g. timer operation, passive infrared sensor (PIR)). The scheme should be implemented and maintained in accordance with the approved details for the lifetime of the development.

Reason: To ensure that the scheme does not adversely impact protected species.

9. Where excavations or surface treatments are proposed within the root protection areas (RPA) of retained trees and hedgerows, full details shall be submitted to and approved in writing by the local planning authority before any development starts. The RPA is defined in BS5837:2012. Details shall include the proposed locations of excavations and/or surface treatments, proposed methods & specifications of excavations and/or surface treatments and any post excavation remedial works. All excavations or surface treatments shall be carried out in accordance with the approved details.

Reason: To prevent damage to or loss of trees

10. Prior to the construction of the on-site drainage systems, a detailed surface water drainage scheme, including a maintenance plan shall be submitted to and approved in writing by the Local Planning Authority. The surface water drainage scheme must be in accordance with the Non-Statutory Technical Standards for Sustainable Drainage Systems (March 2015) or any subsequent replacement national standards. The proposed SUDS/ soakaway design shall be designed in accordance with building regulations and CIRIA 753. Percolation tests to be carried out in line with the building regulations and the BRE365. Once approved, the development shall be completed, maintained and managed in accordance with the approved details.

Reason: To promote sustainable development, secure proper drainage and to manage the risk of flooding and pollution.

11. Notwithstanding the submitted plans the shared access shall be widened to a minimum of 4.1 metres to allow two-way estate car passing for the proposed and existing

dwelling with extended vehicle footway crossover. Bound hardstanding within 5 metres of the footway back edge and drainage retained on site.

Reason: To ensure safe and suitable access for site and highway users in accordance with INF1 of the Local Plan Core Strategy, PD 0.1 and 0.4 of the Local Transport Plan or policy Paragraph 115 and 117 of NPPF.

12. The Development hereby approved shall not be brought into use until pedestrian visibility splays of 2m x 2m measured perpendicularly back from the back of footway shall be provided on both sides of the access. These splays shall thereafter be permanently kept free of all obstructions to visibility over 0.6m in height above the adjoining ground level.

Reason: To ensure motorists have clear and unrestricted views of approaching pedestrians when pulling out onto the adopted highway, in the interest of highway safety.

Informatives

1. The Local Highway Authority has no objection to the above subject to the applicant obtaining a section 184 licence. The construction of a new access will require the extension of a verge and/or footway crossing from the carriageway under the Highways Act 1980 - Section 184 and the Applicant is required to obtain the permission of Gloucestershire Highways on 08000 Infor514 514 or highways@gloucestershire.gov.uk before commencing any works on the highway. Full Details can be found at www.gloucestershire.gov.uk.
2. No Drainage to Discharge to Highway Drainage arrangements shall be provided to ensure that surface water from the driveway and/or vehicular turning area does not discharge onto the public highway. No drainage or effluent from the proposed development shall be allowed to discharge into any highway drain or over any part of the public highway.
3. The applicant's attention is drawn to the need to ensure that the provision of the visibility splay(s) required by this consent is safeguarded in any sale of the application site or part(s) thereof